

25VECV05320 25VECV05320

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV05320 Hearing Date: July 6, 2026 Dept: NWI

25VECV05320 FARZAD

AZIMA vs FCA US LLC, et al.

July 6, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel
and Sanctions

I.

Background

On September

17, 2025, Plaintiff Farzad Azima ("Plaintiff") filed a complaint against FCA US, LLC ("FCA"), Van Nuys Chrysler Dodge Jeep Ram ("Van Nuys Chrysler"), and Does 1 to 10 alleging six causes of action: (1) violation of Cal. Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement through concealment.

On May

29, 2026, FCA filed the instant motion to compel Plaintiff's deposition.

On June

25, 2026, Plaintiff filed his opposition.

On June

26, 2026, Defendant filed its reply.

II. Legal Standard

CCP § 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, CCP § 871.26(c)(1) provides that, within 120 days after the filing of the answer or other responsive pleading, the defendant has the right to conduct an initial deposition, not to exceed two hours, of the plaintiff. (CCP § 871.26(c)(1).)

CCP § 871.26(j)(2) provides, in pertinent part, the following: “Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows . . . (2) [a] one-thousand five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney . . . paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (c).” (CCP § 871.26(j)(2).)

III. Discussion

Requests for Judicial Notice

As a preliminary matter, FCA’s May 29, 2026, request for judicial notice of its opt-in to CCP §§ 871.20 et seq. is granted pursuant to Cal. Evid. Code § 452(h) since the matter is not reasonably subject to dispute.

Analysis

FCA filed its initial demurrer on December 16, 2025, requiring Plaintiff to appear for deposition by April 15, 2026, pursuant to CCP § 871.26. (See December 16, 2025, Demurrer.) On February 10, 2026, FCA requested Plaintiff’s availability for a deposition. (Richards Decl. ¶ 6; Exh. D [correspondence].) On March 12, 2026, FCA served its notice of deposition on Plaintiff scheduled for March 26, 2026. (Id. at ¶ 7; Exh. E [notice].) On March 20, 2026, Plaintiff served objections. (Id. at ¶ 8; Exh. F [objections].) That same day, FCA served an amended notice of deposition scheduled for March 30, 2026. (Id.

at ¶ 9; Exh. G [notice].) On March 30, 2026, Plaintiff sent an untimely objection. (Id. at ¶ 13; Exh. K [objection].) Accordingly, FCA took a certificate of non-appearance. (Richards Decl. ¶ 14; Exh. L [certificate].) As of the date of this motion, Plaintiff had not appeared for his deposition or offered alternative dates. (Id. at ¶ 15.)

In opposition, Plaintiff argues that, on June 8, 2026, Plaintiff's counsel provided deposition dates and the parties agreed that the deposition would take place on June 17, 2026. (Opposition at 2:17-26.) However, due to a calendaring error, the deposition "did not proceed as scheduled." (Ibid.) Thereafter, Plaintiff provided additional dates of June 22 and June 25, 2026. (Ibid.) "There is nothing left to compel, as Plaintiff remains willing and available to be deposed . . ." (Ibid.)

It appears that, as of FCA's June 26, 2026, reply, Plaintiff's deposition still had not been taken. (See generally Reply.) Therefore, FCA's motion is granted. Additionally, mandatory sanctions are awarded pursuant to CCP § 871.26(j)(2).

IV.

Conclusion

Based on the foregoing, FCA's motion is GRANTED.

Plaintiff is to appear for deposition within 15 days of this order.

Additionally, Plaintiff's counsel is to pay defense counsel sanctions in the amount of \$1,500 within 15 days of this order.

Moving party to give notice.